

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. 284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination upon the consent of both client and attorney, or upon order of the court, upon the application of either client or attorney, after notice from one to the other.

David Kouhi's counsel has complied with the provisions of this rule and statute providing notice to client and supporting his motion with a declaration articulating the reasons for withdrawal.

After reviewing the papers submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Plaintiff's Counsel to be Relieved as Counsel of Record. This motion is Granted.

The Court will execute the Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053) as submitted. The withdrawal is effective upon attorney Scott Hammel's filing the proof of service of signed order on the client and all parties.

5. 9:00 AM CASE NUMBER: C24-00323
CASE NAME: SITEONE LANDSCAPE SUPPLY, LLC VS. WEDER CAMARGO
***HEARING ON MOTION IN RE: ENTRY OF JUDGMENT PURSUANT TO STIPULATION**
FILED BY: SITEONE LANDSCAPE SUPPLY, LLC
TENTATIVE RULING:

Plaintiff SiteOne Landscape Supply LLC's unopposed motion pursuant to CCP §664.6, for an order and entry of judgment enforcing the terms of a settlement agreement and stipulation between Plaintiff SiteOne and Defendant Weder De Silva Camargo, an individual doing business as Capitol Pavers and doing business as Capitol Interlocking Pavers; and 4 Fabiana Costa Ribero Morais, an individual doing business as Capitol Landscaping ("Defendants") pursuant to a signed Settlement Agreement and Stipulation dated on or around August 31, 2024 is granted. The Court will sign the submitted Proposed Order Granting Entry of Judgment and it will become effective upon notice of entry being served upon defendants.

6. 9:00 AM CASE NUMBER: C24-00447
CASE NAME: QRS REMODELING INC VS. PALUMBO DOMENICA
HEARING ON SUMMARY MOTION
FILED BY: CONAN, LINDSEY
TENTATIVE RULING:

Before the Court is a motion for summary adjudication filed by defendant Lindsey Conan. The motion is **denied**, as discussed below.

I. Background

Defendants, Palumbo Domenica and Lindsey Conan, employed plaintiff, QRS Remodeling, Inc., for the purposes of constructing improvements on defendants' property. QRS performed work and provided materials, but was not paid. QRS recorded a notice of mechanics lien and filed the present action in Alameda County. After the action was transferred to Contra Costa, defendants moved for summary adjudication in January of 2025. In their motion, defendants requested the Court invalidate the mechanic's lien recorded by plaintiff "on the grounds that the lien is invalid." That motion was denied by Judge Douglas on June 20, 2025.

In July, a case management conference was held and a trial date was set for February 17, 2026.

On December 23, 2025, defendant Lindsey Conan again moved for summary adjudication on the same issue as the previous motion (that the lien is invalid). A hearing was set for March 13, 2026. The proof of service filed on January 5, 2026 reflects that the motion papers were electronically served on plaintiff that same day (January 5, 2026). At the time the papers were served, only 67 days remained prior to the hearing date. No opposition papers were received.

Parties appeared at the issue conference on February 6, 2026, the Court informed parties that the trial would be re-set to accommodate the summary judgment hearing, absent some sort of ex parte appearance by plaintiff to strike the motion. No such ex parte was filed and a new trial date has been re-set for April 21, 2026.

II. Summary Adjudication Standard

With respect to both motions for summary judgment and motions for summary adjudication, "[n]otice of the motion and supporting papers shall be served on all other parties to the action at least 81 days before the time appointed for hearing." (Code Civ. Proc., § 437c (a)(2).)

To prevail on a motion for summary adjudication (as with summary judgment), the moving party must show lack of any triable issues as to any material fact, and entitlement to judgment as a matter of law. (Code Civ. Proc., § 437c(c).) A motion for summary adjudication must completely dispose of a cause of action, affirmative defense, claim for damages, or issue of duty. (Code Civ. Proc., § 437c(f)(1).)

"A party shall not move for summary judgment based on issues asserted in a prior motion for summary adjudication and denied by the court *unless* that party establishes, to the satisfaction of the court, newly discovered facts or circumstances or a change of law supporting the issues reasserted in the summary judgment motion." (Code Civ. Proc., § 437c (f)(2), *emphasis added*.)

III. Motion for Reconsideration Standard

A motion for reconsideration pursuant to Code of Civil Procedure, section 1008 must be based upon new or different facts, circumstances, or law. "The burden under section 1008 is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it" at the original hearing. (*Dickson v. Mann* (2024) 103 Cal.App.5th 935, 951.)

IV. Discussion

The motion must be denied on at least two grounds. It was not filed with sufficient notice and

it shows no newly discovered facts or circumstances, or a change in the law.

A. Motion is Untimely

The notice period contemplated by the summary judgment statute is strictly applied. (See *McMahon v. Superior Court* (2003) 106 Cal.App.4th 112, 114-118 [court's inherent power does not authorize shortening notice period]; accord, *Urshan v. Musicians' Credit Union* (2004) 120 Cal.App.4th 758, 763-766; see also, *Robinson v. Woods* (2008) 168 Cal.App.4th 1258, 1267-68 [failure to give minimum notice not cured by continuance].) The motion was filed on December 23rd, but not served until January 5th, 67 days prior to the hearing date. This is less than the required 81 day notice period required by Code of Civil Procedure, § 437c (a)(2). The motion must therefore be denied on the grounds that it was untimely filed.

B. Motion Presents No New Facts, Circumstances, or Change in the Law

A party may not file a written motion to reconsider that has procedural significance if it does not satisfy the requirements of Cal. Code Civ. Proc. § 437c(f)(2) or § 1008. (*Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1108.)

As in the previous motion, defendant seeks a judicial determination that the lien is invalid as a matter of law. Defendant acknowledges that the motion is one for reconsideration pursuant to Code of Civil Procedure section 1008. Defendant argues the previous motion for summary adjudication was denied solely on the basis that there was not separate statement and, because this motion contains such separate statement, the Court “is required to reach the merits.” (Memorandum of Points and Authorities in Support of Motion, 1:25-27; 3:19.)

Defendant provides no discussion of new or different facts or law. In fact, defendant presents the same declaration previously filed. (*Id.* at 2:1-2.)

Defendant’s representation regarding the basis for denial is also contradicted by the Court’s minutes from June 23, 2025, which adopted the uncontested tentative ruling as the order of the Court. The ruling states, in relevant part:

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 845, 850.) Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid.*; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) Even where a motion for summary judgment is unopposed, or the opposition is flawed, a court cannot grant summary judgment unless the moving party meets its initial burden. (See *Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 305.)

[...]

[D]efendant does not show as a matter of law that the value should be less than the lien amount.

While the June order went on to note that “no separate statement was filed in support of the motion” and that “the lack of separate statement is itself sufficient grounds to deny the motion,” this

was not the only grounds on which the motion was denied, contrary to defendant's representation in the present motion.

7. 9:00 AM CASE NUMBER: C24-02701

CASE NAME: ALYSS DORESE VS. AIDEN CIANI

***HEARING ON MOTION IN RE: TO STRIKE PORTIONS OF 1ST AMENDED CROSS COMPLAINT**

FILED BY: DORESE, ALYSS

TENTATIVE RULING:

Plaintiff and Cross-Defendant Alyss Dorese' special motion to strike allegations from the First Amended Cross-Complaint (FAXC) is granted in part. The Court orders the following paragraphs stricken from the complaint: paragraphs 13-25, 31-32, 49(c) and 60(a). All causes of action remain in the cross-complaint based upon the remaining allegations.

Background

On October 8, 2024, Plaintiff Dorese filed a complaint against Defendant Aiden Ciani for various landlord-tenant related torts, including breach of the warranty of habitability and related causes of action, a rent increase in violation of the Richmond Rent Control Ordinance and retaliation. Dorese alleges that she had a residential tenancy for a property in Richmond starting in 2007.

Ciani filed a cross-complaint on September 15, 2025, and then filed an amended cross-complaint on October 14, 2025. In the FAXC, Ciani alleges that he is the owner of the real property where Dorese is a tenant. (FAXC ¶¶1, 3-4.) Although not clearly alleged, it appears that Ciani lives at or near the property where Dorese lives. Ciani alleges that Dorese engaged in a pattern of hostile and discriminatory conduct towards Ciani, his family and his guests. (FAXC ¶¶5-12.)

Ciane alleges that in August 2025, Ciani (through counsel) told Dorese (through counsel) that she would need to temporarily relocate for 3-4 weeks so that necessary electrical upgrades could be done at the property. (FAXC ¶13.) Between August 28 and September 12, 2025, Ciani offered several relocation options and tried to get dates confirmed from Dorese, but Ciani alleges that Dorese refused to accept any of the location options or provide dates when she would relocate. (FAXC ¶¶13-24.) Ciani alleges that Dorese prevented him from proceeding with the temporary relocation because the Richmond Rent Ordinance requires the relocation notice to include the address of a comparable unit. (FAXC ¶25.)

Ciani listed the property for sale, but Dorese refused to allow real estate showings when she was not present. (FAXC ¶26.) For approximately two weeks, Dorese refused to allow any showings, citing illness. (FAXC ¶27.) During escrow, Dorese made false complaints regarding the furnace. On November 28, 2024, Ciani's contractor discovered that the furnace pilot had been deliberately turned off and Ciani's agent confirmed that the furnace was fully operational. (FAXC ¶28.) Dorese also refused to sign a tenant estoppel certificate, undermining the sale. (FAXC ¶29.) Following a 60-day notice of owner move-in on November 15, 2022, Dorese falsely claimed that she required